IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V
(Division Bench)

Item No.-502
CP (CAA) No.-57/230/232/PB/2018(2nd motion)

IN THE MATTER OF:
Akai Consumer Electronics India Ltd. & Ors. **....Applicant**
With Elite Electronics Pvt. Ltd.

SECTION
U/s 230-232 **Order delivered on 05.07.2023**

CORAM:
SHRI MAHENDRA KHANDELWAL,
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Rishu Kant Sharma, Adv.
For the Respondent :
For the IT Deptt. : Mr. Puneet Rai, Mr. Nikhil Jain, Advs.
For the RD : Ms. Niharika Tanwar, Adv.
For the OL : Ms. Hemlata Rawat, Adv.

ORDER

Heard the submissions made by Ld. Counsel for the Petitioner, Ld. Counsel for the Income Tax Department, proxy counsel for the RD. Ld. Counsel for the OL is present through virtually. Ld. Counsel for the Petitioner seeks three weeks time to comply with the direction given vide order dated 26.04.2023 regarding steps taken for in respect of change of registered address of the Transferor Company and for showing the record to the office of the OL. Time prayed for is granted. Ld. Counsel for the Income Tax Department pointed out that there are Income Tax demands in respect of a Transferor Company No. 2 and 4. Ld. Counsel for the Petitioner stated that Income Tax Department is within their right to make a demand from the Transferee Company. However, the Transferee Company is directed to give an undertaking by way of affidavit

that demand of Income Tax, if any, in respect of any company in the scheme shall be met by the Transferee Company as per the law. The said affidavit is to be filed before the next date of hearing. List the matter on **23.08.2023.**

S/d-
(RAHUL BHATNAGAR)
MEMBER (T)

S/d-
(MAHENDRA KHANDELWAL)
MEMBER (J)

Amit Tiwari
05.07.2023